

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X
MATTHEW HUNTER

Plaintiff,

-against-

THE CITY OF NEW YORK, P.O. SOFIA HAMID,
Tax Id No. 958679, Individually And In Her Official
Capacity, P.O. BRENDAN STORZ, Tax Id No.
953451, Individually And In His Official Capacity,
and POLICE OFFICERS "JOHN DOE" #1-20,
Individually and in their Official Capacity (the name
John Doe being fictitious, as the true names are
presently unknown),

Defendants.

-----X

To the above-named Defendants:

You are hereby summoned to answer the Complaint in this action, and to serve a copy of your answer, or, if the Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiffs' attorney within 20 days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: NEW YORK, NEW YORK
November 3, 2023


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TO:

THE CITY OF NEW YORK
c/o SYLVIA HINDS-RADIX
Corporation Counsel of the City of New York
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P.O. SOFIA HAMID, Tax Id No. 958679
P.O. BRENDAN STORZ, Tax Id No. 953451
106th Precinct
103-53 101st St.
Queens, NY 11417

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

MATTHEW HUNTER,

Plaintiff,

-against-

THE CITY OF NEW YORK, P.O. SOFIA
HAMID, Tax Id No. 958679, Individually And In
Her Official Capacity, P.O. BRENDAN STORZ,
Tax Id No. 953451, Individually And In His
Official Capacity, and POLICE OFFICERS "JOHN
DOE" #1-20, Individually and in their Official
Capacity (the name John Doe being fictitious, as
the true names are presently unknown),

Defendants.

VERIFIED COMPLAINT

Jury Trial Demanded

**BASIS FOR VENUE:
CPLR § 504**

PARTIES

1. Plaintiff MATTHEW HUNTER is a Trinidadian-American, black male, a citizen of the United States, and at all relevant times a resident of the County of Queens, City, and State of New York.

2. Defendant, THE CITY OF NEW YORK, was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

3. Defendant, THE CITY OF NEW YORK, maintains the New York City Police Department ("NYPD"), duly authorized public authorities and/or police departments, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, The City of New York.

4. That at all times hereinafter mentioned, the individually named defendants P.O. SOFIA HAMID (Tax Id No. 958679), P.O. BRENDAN STORZ (Tax Id No. 953451), and POLICE OFFICERS “JOHN DOE” #1-20 (the name John Doe being fictitious, as the true names are presently unknown)(“NYPD Defendants”), were duly sworn police officers of the NYPD and were acting under the supervision of said department and according to their official duties.

5. That at all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages, and/or practices of the State or City of New York.

6. Each and every act of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

7. Each and every act of the defendants alleged herein were done by said defendants while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

FACTS

8. On or about October 30, 2022, at approximately between 12:50 A.M. and 1:31 A.M., plaintiff was lawfully present in his home, located in the vicinity of 114-35 124th St, South Ozone Park, Queens, New York, and was asleep in his bedroom.

9. At the aforesaid time and place, plaintiff, who did not possess any weapons and/or contraband, was not a danger or threat to any person.

10. Subsequently, said officers began to bang on plaintiff’s bedroom door. Plaintiff who was still asleep, did not initially hear said banging. However, plaintiff’s girlfriend, who was also in the bedroom, opened the bedroom door, and upon doing so, was immediately accosted by

said NYPD officers, including but not limited to defendants HAMID, STORZ, and/or POLICE OFFICERS “JOHN DOE” #1-20.

11. Immediately thereafter, plaintiff woke up but was confused about what exactly was going on and why the police were in his home. As such, plaintiff exited said bedroom and began to walk towards said NYPD officers, including but not limited to defendants HAMID, STORZ, and/or POLICE OFFICERS “JOHN DOE” #1-20, with his hands out to show that he was not a threat.

12. Despite the fact plaintiff was unarmed, was not a threat, and did not possess any contraband whatsoever, as plaintiff exited said bedroom with his hands out, without warning or justification, plaintiff was accosted, seized, and violently assaulted by said NYPD officers – defendants HAMID, STORZ, and/or POLICE OFFICERS “JOHN DOE” #1-20.

13. Specifically, defendants HAMID, STORZ, and/or POLICE OFFICERS “JOHN DOE” #1-20 immediately grabbed plaintiff by his hands, violently pushed plaintiff towards the bedroom, forcefully hit his head against the wall, and caused plaintiff’s head to split open against the door frame and bleed profusely, causing him serious injuries and severe pain, and then flipped plaintiff onto the ground, got on top of plaintiff’s person, kned plaintiff about the neck and back, and prevented plaintiff from breathing; and then forcefully placed plaintiff under arrest by violently pulling on plaintiff’s arms and handcuffing them tightly behind his back.

14. Thereafter, multiple NYPD officers – defendants HAMID, STORZ, and/or POLICE OFFICERS “JOHN DOE” #1-20 – violently and forcefully dragged plaintiff’s person out of his home, subjecting him to further injuries without justification.

15. At no time was the force used against plaintiff by defendants HAMID, STORZ, and/or POLICE OFFICERS “JOHN DOE” #1-20 reasonable and/or justified under the

circumstances as plaintiff was unarmed, not a threat, did not possess any contraband, and was asleep when said officers arrived at his home.

16. At no time on October 30, 2022, did defendants HAMID, STORZ, and/or POLICE OFFICERS “JOHN DOE” #1-20 possess probable cause to arrest plaintiff.

17. At no time on October 30, 2022, did defendants HAMID, STORZ, and/or POLICE OFFICERS “JOHN DOE” #1-20 possess information that would lead a reasonable officer to believe probable cause existed to arrest plaintiff.

18. Subsequently, plaintiff was transported by defendants HAMID, STORZ, and/or POLICE OFFICERS “JOHN DOE” #1-20 to a nearby hospital i.e. Jamaica Hospital Medical Center (“JHMC”), where he was provided medical attention.

19. While plaintiff was at the hospital, upon information and belief, defendants HAMID, STORZ, and/or POLICE OFFICERS “JOHN DOE” #1-20, falsely informed the medical staff at JHMC that plaintiff had fallen and struck his head on a metal table before they arrived at his home.

20. However, plaintiff had not fallen and struck his head on anything, let alone a metal table, before said NYPD officers arrived at his home, and plaintiff never informed anyone at JHMC that he was injured before the NYPD’s arrival, because he was not. On the contrary, plaintiff was injured by defendants HAMID, STORZ, and/or POLICE OFFICERS “JOHN DOE” #1-20 unreasonable use of force.

21. Upon information and belief, defendants HAMID, STORZ, and/or POLICE OFFICERS “JOHN DOE” #1-20, made these false statements to medical staff at JHMC to cover up their misconduct and use of excessive force so they could avoid being penalized for engaging in said unlawful use of force.

22. While plaintiff was at JHMC hospital, he remained handcuffed to the hospital gurney and under police custody.

23. Upon plaintiff's discharge from JHMC, plaintiff was placed in a police vehicle and transported to a nearby police precinct.

24. Upon arrival at said precinct, plaintiff was searched. However, no contraband was found on plaintiff's person and/or effects as a result of this or any searches, nor did plaintiff possess or have custody or control over any contraband.

25. Plaintiff remained detained at said precinct for several hours, during which time he was photographed, fingerprinted, questioned, and charged by defendants HAMID, STORZ, and/or POLICE OFFICERS "JOHN DOE" #1-20 with assault, strangulation, criminal obstruction of breathing, obstructing governmental administration, and resisting arrest.

26. Thereafter, plaintiff was transported to Queens Central Booking. Upon arrival at Central Booking, plaintiff was searched again and further detained before he was eventually released following his arraignment.

27. Upon plaintiff's release from custody, plaintiff returned to JHMC for further evaluation, at which time plaintiff accurately and truthfully advised medical staff at JHMC that his injuries were caused by defendants HAMID, STORZ, and/or POLICE OFFICERS "JOHN DOE" #1-20 who had violently assaulted and arrested him on or about October 30, 2022.

28. At no time was plaintiff charged with any crimes and/or violations concerning assaulting, harassing, and/or placing his girlfriend and/or any other civilian(s) in harm's way. On the contrary, all of the charges were related to actions plaintiff allegedly took towards NYPD officers, namely – defendants HAMID, STORZ, and/or POLICE OFFICERS "JOHN DOE" #1-

20. However, plaintiff had not taken any of the alleged actions toward officers; on the contrary, said officers had violently assaulted plaintiff without warning or justification.

29. In connection with plaintiffs' arrest, upon information and belief, defendants HAMID, STORZ, and/or POLICE OFFICERS "JOHN DOE" #1-20 filled out false and/or misleading police reports (and/or otherwise provided false information concerning the herein mentioned events) and forwarded them to prosecutors at the Queens County District Attorney's Office.

30. Thereafter, defendants HAMID, STORZ, and/or POLICE OFFICERS "JOHN DOE" #1-20 repeated the aforementioned false and misleading information regarding the facts and circumstances of plaintiff's arrest.

31. Specifically, defendants HAMID, STORZ, and/or POLICE OFFICERS "JOHN DOE" #1-20 falsely stated, *inter alia*, that while they were attempting to arrest plaintiff on unknown charges plaintiff grabbed and pulled on defendant STORZ's ballistic vest, preventing defendant STORZ from placing plaintiff in handcuffs.

32. Defendants HAMID, STORZ, and/or POLICE OFFICERS "JOHN DOE" #1-20 further falsely stated that plaintiff's actions caused the velcro shoulder straps on defendant STORZ's ballistic vest to become undone, causing defendant HAMID to re-adjust said velcro shoulder straps in order to secure defendant STORZ's ballistic vest on his person.

33. Defendants HAMID, STORZ, and/or POLICE OFFICERS "JOHN DOE" #1-20 also falsely stated that plaintiff had grabbed the collar of defendant STORZ's shirt, dug his thumb into defendant STORZ's throat and applied pressure, causing defendant STORZ to have difficulty breathing.

34. Defendants HAMID, STORZ, and/or POLICE OFFICERS “JOHN DOE” #1-20 further falsely stated that plaintiff tensed and flailed his arms, and kicked his legs in an attempt to avoid being handcuffed and placed under arrest by defendant STORZ.

35. Finally, Defendants HAMID, STORZ, and/or POLICE OFFICERS “JOHN DOE” #1-20 falsely stated that plaintiff’s actions caused defendant STORZ difficulty breathing, coughing, and substantial pain to his throat.

36. As a result of the foregoing, plaintiff was detained for approximately two (2) days and was maliciously prosecuted, was denied the right to a fair trial based on said officers’ fabrications, and was forced to make several court appearances to fight the aforementioned false allegations against him.

37. On or about May 9, 2023, all charges against plaintiff were dismissed in their entirety.

38. Upon information and belief, the charges were dismissed on speedy trial grounds (CPL §30.30) because, *inter alia*, the District Attorney had not timely produced key evidence to plaintiff’s criminal defense attorney, including the body-worn camera video(s).

39. In addition, as a result of the foregoing, plaintiff suffered physical injuries, including, but not limited to, a large laceration on his head, which required immediate medical attention, including, approximately four (4) staples to close, multiple lacerations to his arm (right elbow), neck, and ears, swelling and pain in his knee and shoulders, bruises, numbness, swelling, and pain to his hands/wrists, other injuries as more fully documented in his medical records, and emotional distress.

40. As a result of the foregoing, plaintiff sustained, *inter alia*, physical injuries, loss of liberty, economic damages, mental anguish, shock, fright, apprehension, embarrassment, humiliation, and deprivation of his constitutional rights.

FIRST CLAIM FOR RELIEF
DEPRIVATION OF FEDERAL RIGHTS UNDER 42 U.S.C. § 1983

41. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

42. All of the aforementioned acts of defendants, their agents, servants, and employees, were carried out under the color of state law.

43. All of the aforementioned acts deprived plaintiff of the rights, privileges, and immunities guaranteed to citizens of the United States by the Fourth, Fifth, Eighth, and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

44. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers and/or correctional officers, with all the actual and/or apparent authority attendant thereto.

45. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers and corrections officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York, the New York City Police Department, and the New York City Department of Corrections, all under the supervision of ranking officers of said departments.

46. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure, or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

SECOND CLAIM FOR RELIEF
EXCESSIVE FORCE UNDER 42 U.S.C. § 1983

47. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the previous paragraphs with the same force and effect as if fully set forth herein.

48. The level of force employed by defendants HAMID, STORZ, and/or POLICE OFFICERS “JOHN DOE” #1-20 was objectively unreasonable and in violation of the constitutional rights of the plaintiff.

49. As a result of the foregoing, plaintiff sustained, inter alia, bodily injuries, including, but not limited to, a large laceration on his head, which required immediate medical attention, including, approximately four (4) staples to close, multiple lacerations to his arm (right elbow), neck, and ears, swelling and pain in his knee and shoulders, bruises, numbness, swelling, and pain to his hands/wrists, other injuries as more fully documented in his medical records, and emotional distress.

THIRD CLAIM FOR RELIEF ARISING
FALSE ARREST UNDER 42 U.S.C. § 1983

50. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the previous paragraphs with the same force and effect as if fully set forth herein.

51. As a result of the aforesaid conduct by defendants HAMID, STORZ, and/or POLICE OFFICERS “JOHN DOE” #1-20, plaintiff was subjected to an illegal, improper, and false arrest by the defendants HAMID, STORZ, and/or POLICE OFFICERS “JOHN DOE” #1-

20, taken into custody and caused to be falsely imprisoned, detained, and confined, without any probable cause, privilege or consent.

52. As a result of the foregoing, plaintiff's liberties were restricted for an extended period of time, he was put in fear for his safety, and he was humiliated, searched, and subjected to handcuffing and other physical restraints, without probable cause.

**FOURTH CLAIM FOR RELIEF ARISING
DENIAL OF CONSTITUTIONAL RIGHT TO FAIR TRIAL UNDER 42 U.S.C. § 1983**

53. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the previous paragraphs with the same force and effect as if fully set forth herein.

54. Defendants HAMID, STORZ, and/or POLICE OFFICERS "JOHN DOE" #1-20 created false evidence against the plaintiff.

55. Defendants HAMID, STORZ, and/or POLICE OFFICERS "JOHN DOE" #1-20 forwarded false evidence and false information to prosecutors in the Queens County District Attorney's Office as described in the proceeding paragraphs.

56. Defendants HAMID, STORZ, and/or POLICE OFFICERS "JOHN DOE" #1-20 misled the prosecutors by creating false evidence against the plaintiff and thereafter providing the aforementioned false statements throughout the criminal proceedings.

57. In creating false evidence against the plaintiff, in forwarding false evidence and information to prosecutors, and in providing false and misleading sworn statements, defendants HAMID, STORZ, and/or POLICE OFFICERS "JOHN DOE" #1-20 violated plaintiff's constitutional right to a fair trial under the Sixth Amendment and the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

58. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, he suffered economic damages, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

FIFTH CLAIM FOR RELIEF
MALICIOUS PROSECUTION UNDER 42 U.S.C. § 1983

59. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the previous paragraphs with the same force and effect as if fully set forth herein.

60. Defendants HAMID, STORZ, and/or POLICE OFFICERS "JOHN DOE" #1-20 misrepresented and falsified evidence before the Queens County District Attorney.

61. Defendants HAMID, STORZ, and/or POLICE OFFICERS "JOHN DOE" #1-20 did not make a complete and full statement of facts to the District Attorney.

62. Defendants HAMID, STORZ, and/or POLICE OFFICERS "JOHN DOE" #1-20 withheld exculpatory evidence from the District Attorney.

63. Defendants HAMID, STORZ, and/or POLICE OFFICERS "JOHN DOE" #1-20 were directly and actively involved in the initiation of criminal proceedings against plaintiff.

64. Defendants HAMID, STORZ, and/or POLICE OFFICERS "JOHN DOE" #1-20 lacked probable cause to initiate criminal proceedings against plaintiff.

65. Defendants HAMID, STORZ, and/or POLICE OFFICERS "JOHN DOE" #1-20 acted with malice in initiating criminal proceedings against plaintiff.

66. Defendants HAMID, STORZ, and/or POLICE OFFICERS "JOHN DOE" #1-20 were directly and actively involved in the continuation of criminal proceedings against plaintiff.

67. Defendants HAMID, STORZ, and/or POLICE OFFICERS "JOHN DOE" #1-20 lacked probable cause to continue criminal proceedings against plaintiff.

68. Defendants HAMID, STORZ, and/or POLICE OFFICERS “JOHN DOE” #1-20 acted with malice in continuing criminal proceedings against plaintiff.

69. Defendants HAMID, STORZ, and/or POLICE OFFICERS “JOHN DOE” #1-20 misrepresented and falsified evidence throughout all phases of the criminal proceedings.

70. Specifically, defendants’ HAMID, STORZ, and/or POLICE OFFICERS “JOHN DOE” #1-20 made the aforementioned false and misleading allegations regarding the circumstances surrounding plaintiff’s arrest.

71. Notwithstanding the perjurious and fraudulent conduct of defendants HAMID, STORZ, and/or POLICE OFFICERS “JOHN DOE” #1-20, the criminal proceedings were terminated in plaintiff’s favor on or about May 9, 2023.

72. As a result of the foregoing, plaintiff’s liberty was restricted for an extended period of time, he was put in fear for his safety, he suffered economic damages, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

SIXTH CLAIM FOR RELIEF
FAILURE TO INTERCEDE UNDER 42 U.S.C. § 1983

73. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

74. Defendants HAMID, STORZ, and/or POLICE OFFICERS “JOHN DOE” #1-20 had an affirmative duty, and the opportunity to intercede when plaintiff’s constitutional rights were being violated in defendants’ HAMID, STORZ, and/or POLICE OFFICERS “JOHN DOE” #1-20 presence by the use of excessive force and by fabrication of evidence.

75. Defendants HAMID, STORZ, and/or POLICE OFFICERS “JOHN DOE” #1-20 further violated plaintiff’s constitutional rights when they failed to intercede and prevent the

violation or further violation of plaintiff's constitutional rights and the injuries or further injuries caused as a result of said failure.

76. As a result of the defendants' HAMID, STORZ, and/or POLICE OFFICERS "JOHN DOE" #1-20 failure to intercede when plaintiff's constitutional rights were being violated in defendants' HAMID, STORZ, and/or POLICE OFFICERS "JOHN DOE" #1-20 presence, plaintiff sustained, *inter alia*, physical injuries, loss of liberty, economic damages, emotional distress, mental anguish, shock, fright, apprehension, embarrassment, humiliation, and deprivation of constitutional rights.

SEVENTH CLAIM FOR RELIEF
MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983

77. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

78. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure, or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

79. The aforementioned customs, policies, usages, practices, procedures, and rules of the City of New York, the New York City Police Department include, but are not limited to, the following unconstitutional practices:

- i. arresting individuals regardless of probable cause in order to inflate the officer's arrest statistics; and,
- ii. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing; and,
- iii. fabricating evidence in connection with their arrest/prosecution in order to cover up police misconduct; and,

- iv. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing and regardless of probable cause, for the purpose of obtaining overtime compensation; and,
- v. handcuffing all hospitalized arrestees/prisoners for the entirety of their hospitalization regardless of their risk of flight or safety risk to others; and,
- vi. utilizing excessive force in effectuating arrests when there is no excuse or justification for any such force; and,
- vii. failing to intercede to prevent violations of plaintiff's constitutional rights; and,
- viii. failing to take reasonable steps to control and/or discipline police officers who lie, fabricate evidence, use excessive force, and/or commit perjury in order to cover up police misconduct and/or inflate arrest statistics.

80. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York, the New York City Police Department constituted deliberate indifference to the safety, well-being, and constitutional rights of the plaintiff.

81. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York, the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by the plaintiff as alleged herein.

82. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York, the New York City Police Department were the moving force behind the constitutional violations suffered by the plaintiff as alleged herein.

83. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the plaintiffs' constitutional rights.

84. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of the plaintiffs' constitutional rights.

85. The acts complained of deprived the plaintiff of his rights:

- i. To be free from cruel and unusual punishments;
- ii. To receive timely and adequate medical care;
- iii. To be provided with appropriate safety while in custody;
- iv. Not to have summary punishment imposed upon him; and
- v. To receive equal protection under the law.

PENDANT STATE CLAIMS

86. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

87. On or about January 20, 2023, within (90) days after the claim herein accrued, the plaintiff duly served upon, presented to, and filed with defendant THE CITY OF NEW YORK, a Notice of Claim setting forth all facts and information required under the General Municipal Law § 50 (e).

88. Thereafter, on or about May 11, 2023, within (90) days after any additional claims herein accrued, the plaintiff duly served upon, presented to, and filed with defendant THE CITY OF NEW YORK, an Amended Notice of Claim setting forth all additional facts and information required under the General Municipal Law § 50 (e).

89. Defendant THE CITY OF NEW YORK has wholly neglected or refused to make an adjustment or payment thereof and more than thirty (30) days have elapsed since the presentation of such claim as aforesaid.

90. Defendant THE CITY OF NEW YORK demanded a hearing pursuant to General Municipal Law § 50-h and said hearing was held on or about July 7, 2023.

91. This action was commenced within one (1) year and ninety (90) days after the cause of action herein accrued.

92. Plaintiff has complied with all conditions precedent to maintaining the instant action.

93. This action falls within one or more of the exceptions as outlined in C.P.L.R. § 1602.

FIRST CLAIM FOR RELIEF UNDER N.Y. STATE LAW
FALSE ARREST/IMPRISONMENT

94. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

95. Defendant police officers HAMID, STORZ, and/or POLICE OFFICERS “JOHN DOE” #1-20 arrested plaintiff in the absence of probable cause and without a warrant.

96. As a result of the foregoing, plaintiff was falsely imprisoned, his liberty was restricted for an extended period of time, he was put in fear for his safety, and humiliated and subjected to handcuffing and other physical restraints.

97. Plaintiff was conscious of said confinement and did not consent to the same.

98. The confinement of plaintiff was without probable cause and was not otherwise privileged.

99. As a result of the aforesaid conduct by defendants HAMID, STORZ, and/or POLICE OFFICERS “JOHN DOE” #1-20, plaintiff was subjected to an illegal, improper, and false arrest by the defendants and taken into custody, and caused to be falsely imprisoned,

detained, confined, incarcerated and prosecuted by the defendants in criminal proceedings. The aforesaid actions by defendants HAMID, STORZ, and/or POLICE OFFICERS “JOHN DOE” #1-20 constituted a deprivation of plaintiff’s rights.

100. As a result of the aforementioned conduct, plaintiff has suffered physical and mental injury, together with embarrassment, humiliation, shock, fright, and loss of freedom.

SECOND CLAIM FOR RELIEF UNDER N.Y. STATE LAW
MALICIOUS PROSECUTION

101. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

102. Defendants HAMID, STORZ, and/or POLICE OFFICERS “JOHN DOE” #1-20 misrepresented and falsified and/or omitted evidence before the Queens County District Attorney.

103. Defendants HAMID, STORZ, and/or POLICE OFFICERS “JOHN DOE” #1-20 did not make a complete and full statement of facts to the District Attorney.

104. Defendants HAMID, STORZ, and/or POLICE OFFICERS “JOHN DOE” #1-20 withheld exculpatory evidence from the District Attorney.

105. Defendants HAMID, STORZ, and/or POLICE OFFICERS “JOHN DOE” #1-20 were directly and actively involved in the initiation of criminal proceedings against plaintiff.

106. Defendants HAMID, STORZ, and/or POLICE OFFICERS “JOHN DOE” #1-20 lacked probable cause to initiate criminal proceedings against plaintiff.

107. Defendants HAMID, STORZ, and/or POLICE OFFICERS “JOHN DOE” #1-20 acted with malice in initiating criminal proceedings against plaintiff.

108. Defendants HAMID, STORZ, and/or POLICE OFFICERS “JOHN DOE” #1-20 were directly and actively involved in the continuation of criminal proceedings against plaintiff.

109. Defendants HAMID, STORZ, and/or POLICE OFFICERS “JOHN DOE” #1-20 lacked probable cause to continue criminal proceedings against plaintiff.

110. Defendants HAMID, STORZ, and/or POLICE OFFICERS “JOHN DOE” #1-20 acted with malice in continuing criminal proceedings against plaintiff.

111. Defendants HAMID, STORZ, and/or POLICE OFFICERS “JOHN DOE” #1-20 misrepresented and falsified evidence throughout all phases of the criminal proceedings.

112. Defendants HAMID, STORZ, and/or POLICE OFFICERS “JOHN DOE” #1-20 made the specific false statements described in the proceeding paragraphs.

113. Notwithstanding the perjurious and fraudulent conduct of defendants HAMID, STORZ, and/or POLICE OFFICERS “JOHN DOE” #1-20, the criminal proceeding against plaintiff was dismissed in its entirety on or about May 9, 2023.

114. As a result of this prosecution, plaintiff spent approximately two (2) days in custody and had to make multiple court appearances before the charges against him were dismissed.

115. As a result of the foregoing, plaintiff’s liberty was restricted for an extended period of time, he was put in fear for his safety, he lost wages, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

THIRD CLAIM FOR RELIEF UNDER N.Y. STATE LAW
ASSAULT

116. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

117. Defendants' HAMID, STORZ, and/or POLICE OFFICERS "JOHN DOE" #1-20 aforementioned actions placed plaintiff in apprehension of imminent harmful and offensive bodily contact.

118. As a result of defendants' conduct, plaintiff has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment, and humiliation.

**FOURTH CLAIM FOR RELIEF UNDER N.Y. STATE LAW
BATTERY**

119. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

120. Defendants HAMID, STORZ, and/or POLICE OFFICERS "JOHN DOE" #1-20 touched plaintiff in a harmful and offensive manner.

121. Defendants HAMID, STORZ, and/or POLICE OFFICERS "JOHN DOE" #1-20 did so without privilege or consent from plaintiff.

122. As a result of defendants' conduct, plaintiff has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment, and humiliation.

**FIFTH CLAIM FOR RELIEF UNDER N.Y. STATE LAW
INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS**

123. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

124. The aforementioned conduct was extreme and outrageous, and exceeded all reasonable bounds of decency.

125. The aforementioned conduct was committed by defendants HAMID, STORZ, and/or POLICE OFFICERS "JOHN DOE" #1-20 while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

126. The aforementioned conduct was committed by defendants HAMID, STORZ, and/or POLICE OFFICERS "JOHN DOE" #1-20 while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

127. The aforementioned conduct was intentional and done for the sole purpose of causing severe emotional distress to plaintiff.

128. As a result of the aforementioned conduct, plaintiff suffered severe emotional distress, ~~and~~ physical and mental injuries, together with embarrassment, humiliation, shock, and fright.

SIXTH CLAIM FOR RELIEF UNDER N.Y. STATE LAW
NEGLIGENT HIRING/TRAINING/SUPERVISION/RETENTION

129. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

130. Defendant CITY OF NEW YORK selected, hired, trained, retained, assigned, and supervised all members of its Police Department and Department of Corrections, including the defendants individually named above.

131. Defendant CITY OF NEW YORK was negligent and careless when it selected, hired, trained, retained, assigned, and supervised all members of its Police Department and Department of Corrections including the defendants individually named above.

132. Defendant CITY OF NEW YORK selected, hired, trained, retained, assigned, and supervised all members of its Police Department and Department of Corrections, including the defendants individually named above.

133. Defendant CITY OF NEW YORK was negligent and careless when it selected, hired, trained, retained, assigned, and supervised all members of its Police Department and Department of Corrections including the defendants individually named above.

134. Due to the actions and/or negligence of the defendants as set forth above, plaintiff suffered physical injury, pain, and trauma.

135. As a result of the foregoing, plaintiff is entitled to compensatory damages and is further entitled to punitive damages against the individual defendants.

PENDANT CITY LAW CLAIMS PURSUANT TO 2021 N.Y.C. LOCAL LAW NO. 48
N.Y.C. ADMIN. CODE §§ 8-802, ET SEQ.

FIRST CLAIM FOR RELIEF UNDER N.Y.C. LAW
VIOLATION OF AC-8-802 RIGHTS – UNREASONABLE SEARCH & SEIZURE

136. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

137. The acts of defendants HAMID, STORZ, and/or POLICE OFFICERS “JOHN DOE” #1-20 constituted conduct under color of any law, ordinance, rule, regulation, custom, or usage.

138. The acts of HAMID, STORZ, and/or POLICE OFFICERS “JOHN DOE” #1-20 caused plaintiff to be deprived of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8-802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures.

139. Defendants HAMID, STORZ, and/or POLICE OFFICERS “JOHN DOE” #1-20, while acting in the scope of their employment for THE CITY OF NEW YORK as police officers, unlawfully seized, frisked, and searched the plaintiff, before detaining plaintiff and further causing his detention for approximately two (2) days in total.

140. By reason of the acts and omissions by defendants HAMID, STORZ, and/or POLICE OFFICERS “JOHN DOE” #1-20 as described above, plaintiff has endured *inter alia*, loss of liberty, physical injuries, economic damages, emotional distress, mental anguish, shock, fright, apprehension, embarrassment, humiliation, deprivation of constitutional rights, and was otherwise damaged and/or injured.

**SECOND CLAIM FOR RELIEF UNDER N.Y.C. LAW
VIOLATION OF AC-8-802 RIGHTS – EXCESSIVE FORCE**

141. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

142. The acts of defendants HAMID, STORZ, and/or POLICE OFFICERS “JOHN DOE” #1-20 constituted conduct under color of any law, ordinance, rule, regulation, custom, or usage.

143. The acts of HAMID, STORZ, and/or POLICE OFFICERS “JOHN DOE” #1-20 caused plaintiff to be deprived of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8-802, to wit: to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

144. That defendants HAMID, STORZ, and/or POLICE OFFICERS “JOHN DOE” #1-20, while acting in the scope of their employment for THE CITY OF NEW YORK as police officers, unlawfully used excessive force against plaintiff causing physical injuries.

145. As a direct and proximate result of the foregoing conduct of the defendants as set forth above, plaintiff, sustained, *inter alia*, physical injuries, emotional distress, mental anguish, shock, fright, apprehension, embarrassment, humiliation, and deprivation of constitutional rights.

THIRD CLAIM FOR RELIEF UNDER N.Y.C. LAW
VIOLATION OF AC-8-802 RIGHTS – FAILURE TO INTERVENE

146. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

147. The acts of defendants HAMID, STORZ, and/or POLICE OFFICERS “JOHN DOE” #1-20 constituted conduct under color of any law, ordinance, rule, regulation, custom, or usage.

148. Defendants HAMID, STORZ, and/or POLICE OFFICERS “JOHN DOE” #1-20 had a duty to protect plaintiff from violations of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8-802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

149. The defendants that did not engage in the unreasonable search and seizure of plaintiff and/or the excessive force against plaintiff as outlined above, but were present when other officers violated those rights of plaintiff, had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

150. Defendants HAMID, STORZ, and/or POLICE OFFICERS “JOHN DOE” #1-20 failed to intervene to prevent the unlawful conduct described herein, thereby failing in their duty to intervene to protect plaintiff from a violation of his rights.

151. As a direct and proximate result of the foregoing conduct of the defendants as set forth above, plaintiff, sustained, *inter alia*, loss of liberty, physical injuries, economic damages, emotional distress, mental anguish, shock, fright, apprehension, embarrassment, humiliation, and deprivation of constitutional rights.

FOURTH CLAIM FOR RELIEF UNDER N.Y.C. LAW
VIOLATION OF AC-8-802 RIGHTS – CITY LIABILITY UNREASONABLE
SEARCH/SEIZURE AND EXCESSIVE FORCE

152. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

153. Defendants HAMID, STORZ, and/or POLICE OFFICERS “JOHN DOE” #1-20 are “covered individuals” as defined in 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8-801 in that they are employees of the Police Department or persons appointed by the Police Commissioner as Special Patrolmen.

154. Defendant THE CITY OF NEW YORK as the employer of the covered individual defendants HAMID, STORZ, and/or POLICE OFFICERS “JOHN DOE” #1-20 is liable to the plaintiff for the wrongdoing of the covered individual defendants HAMID, STORZ, and/or POLICE OFFICERS “JOHN DOE” #1-20.

155. The acts of defendants HAMID, STORZ, and/or POLICE OFFICERS “JOHN DOE” #1-20 constituted conduct under color of any law, ordinance, rule, regulation, custom, or usage.

156. The acts of HAMID, STORZ, and/or POLICE OFFICERS “JOHN DOE” #1-20 caused plaintiff to be deprived of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8-802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

157. That defendants HAMID, STORZ, and/or POLICE OFFICERS “JOHN DOE” #1-20, while acting in the scope of their employment for THE CITY OF NEW YORK as police officers, unlawfully searched/seized plaintiff and used excessive force against plaintiff.

158. As a direct and proximate result of the foregoing conduct of the defendants as set forth above, plaintiff, sustained, *inter alia*, loss of liberty, physical injuries, economic damages, emotional distress, mental anguish, shock, fright, apprehension, embarrassment, humiliation, and deprivation of constitutional rights.

FIFTH CLAIM FOR RELIEF UNDER N.Y.C. LAW
VIOLATION OF AC-8-802 RIGHTS – CITY LIABILITY FAILURE TO INTERVENE

159. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

160. Defendants HAMID, STORZ, and/or POLICE OFFICERS “JOHN DOE” #1-20 are “covered individuals” as defined in 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8-801 in that they are employees of the Police Department or persons appointed by the Police Commissioner as a Special Patrolmen.

161. Defendant THE CITY OF NEW YORK as the employer of the covered individual defendants HAMID, STORZ, and/or POLICE OFFICERS “JOHN DOE” #1-20 is liable to the plaintiff for the wrongdoing of the covered individual defendants HAMID, STORZ, and/or POLICE OFFICERS “JOHN DOE” #1-20.

162. The acts of defendants HAMID, STORZ, and/or POLICE OFFICERS “JOHN DOE” #1-20 constituted conduct under color of any law, ordinance, rule, regulation, custom, or usage.

163. Defendants HAMID, STORZ, and/or POLICE OFFICERS “JOHN DOE” #1-20 had a duty to protect plaintiff from violations of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8-802, to wit: to be secure in his person, house, papers, and effects

against unreasonable searches and seizures and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

164. The defendants that did not engage in the unreasonable search and seizure of plaintiff and/or the excessive force against plaintiff as outlined above, but were present when other officers violated those rights of plaintiff, had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

165. Defendants HAMID, STORZ, and/or POLICE OFFICERS "JOHN DOE" #1-20 failed to intervene to prevent the unlawful conduct described herein, thereby failing in their duty to intervene to protect plaintiff from a violation of his rights.

166. As a direct and proximate result of the foregoing conduct of the defendants as set forth above, plaintiff, sustained, *inter alia*, loss of liberty, physical injuries, economic damages, emotional distress, mental anguish, shock, fright, apprehension, embarrassment, humiliation, and deprivation of constitutional rights.

WHEREFORE, plaintiff respectfully requests judgment against defendants as follows:

- i. an order awarding compensatory damages in an amount to be determined at trial;
- ii. an order awarding punitive damages in an amount to be determined at trial;
- iii. reasonable attorneys' fees and costs; and
- iv. directing such other and further relief as the Court may deem just and proper, together with attorneys' fees, interest, costs, and disbursements of this action.

Dated: New York, New York
November 3, 2023

BY: 
Ilyssa S. Fuchs, Esq.
Cohen & Fitch LLP
233 Broadway, Suite 900
New York, New York 10279
(212) 374-9115

ATTORNEY'S VERIFICATION

ILYSSA S. FUCHS, an attorney duly admitted to practice law in the Courts of the State of New York, states:

That she is a member of the law firm of COHEN & FITCH, LLP the attorneys for the plaintiff MATTHEW HUNTER in the within-entitled action.

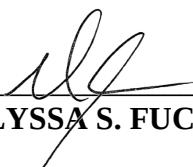
That your deponent has read the foregoing **COMPLAINT** and knows the contents thereof, and that the same is true to her own knowledge, except as to the matters therein stated to be alleged upon information and belief, and as to those matters, she believes it to be true.

That the source of the deponent's information are investigation and records in the file.

That the reason why the verification is made by deponent and not by the plaintiff is that the plaintiff is not within the county wherein deponent maintains her office.

Deponent affirms that the foregoing statements are true under the penalties of perjury.

Dated: New York, New York
November 3, 2023



ILYSSA S. FUCHS